BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **[ALTERNATIVE B - PROPOSED] JUDGMENT DIRECTING RECONSIDERATION** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

Superior Court of California, County of Alameda -- No. 26CV191136 Newanforbi v. California Highway Patrol; G. Serrato -- Judge Jenna M. Whitman, Dept. 25

Date/hearing/entered judgment: [COMPLETE FROM THE COURT RECORD]

FINDINGS BELOW ARE CONTINGENT ON PROOF, AND THE SPECIFIC ACTUAL ERROR MUST BE SUPPLIED FROM THE COURT'S MERITS RULING. NO PREDETERMINED FINDING OF SERRATO'S PRIVATE RELIANCE IS MADE BY THIS PROPOSED FORM.

The Court considered the admissible evidence and arguments on the surviving First

Cause of Action under Code of Civil Procedure section 1085 and Penal Code section 679.10.

Findings

1. On April 9, 2026, Petitioner requested Form I-918 Supplement B certification. On April 20, CHP, acting through Captain Serrato, denied certification on the stated ground that no qualifying or substantially similar criminal activity arose from the incident.

2. Penal Code section 679.10(c) expressly includes false imprisonment and unlawful criminal restraint; (d) governs substantially similar offenses; (g)(1) imposes conditional certification when qualifying victimhood and helpfulness are established; (h) governs the rebuttable helpfulness presumption; (i)(2) governs written denials; and (k) bars conditioning certification on the existence of a prosecution, conviction or other excluded circumstances.

3. The Court has found the following specifically identified material factual error, statutory misinterpretation or abuse of discretion in the April 20 determination: [SET FORTH ACTUAL ADJUDICATED ERROR AND EXACT EVIDENCE. It is insufficient simply to state the denial was brief. If walk-and-turn mismatch is used, distinguish a proven report error from the additional showing that the error was material to the certification determination.]

4. The error in Finding 3 was material because [STATE COURT'S ACTUAL REASONING WHY IT AFFECTS THE NO-QUALIFYING-ACTIVITY DECISION]. The decision therefore cannot lawfully stand. The Court does not find on the present record that the only permissible disposition is immediate certification; genuine factual evaluation remains for the authorized official, consistent with the Court's findings.

Judgment and directions

5. Judgment is granted on First Cause of Action to the limited extent stated herein. The April 20 refusal is vacated and set aside.

6. A peremptory writ shall direct CHP, through its authorized certifying official, within 30 calendar days of service of the writ, to reconsider the April 9 application using the correct standards of section 679.10 and without repeating the judicially determined error identified in Findings 3--4. In applying factual evidence, it shall honor the Court's actually decided facts and may evaluate other matters not foreclosed by those findings according to law.

7. CHP shall separately assess qualifying victimhood and statutory helpfulness under subdivisions (g) and (h), and must not demand charges, prosecution or conviction contrary to subdivision (k)(1), or rely on a ground prohibited by subdivision (k)(3). If certification is again denied, its written notice shall comply with subdivision (i)(2). This judgment does not require a prosecution or criminal charge against any officer.

8. Within 45 calendar days after service of writ CHP shall file and serve a verified return stating the steps taken and including the reconsideration determination or completed certification, subject to lawful privacy protections.

9. The Court retains jurisdiction to determine writ compliance; it reserves no authority to decide federal immigration status and grants no relief on dismissed counts or damages claims. Costs, if any, upon proper application.

IT IS SO ORDERED.

Dated: _____

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JUDGE OF THE SUPERIOR COURT

Do not lodge this as a pre-established factual finding: Placeholders must be replaced from proved facts and the actual court ruling. Mutually exclusive with Alternative A.